

David Charles Lewis

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Date: 03/06/2026

To:

Greg Evans
Building Compliance Officer
Northern Beaches Council
PO Box 82
Manly NSW 1655

Re: Representations in Response to Notice of Intention to Give a Development Control Order – EPA2026/0071

Dear Mr Evans,

I write to make formal representations under Clause 13 of Part 7 of Schedule 5 to the *Environmental Planning and Assessment Act 1979* (EP&A Act) in response to the **Notice of Intention to Give a Development Control Order** dated **21 May 2026** relating to the structure located at **40 Frenchs Forest Road East, Frenchs Forest NSW 2086**.

These representations address the matters raised in the Notice, provide factual clarifications, and outline a clear and practical pathway for achieving full compliance through a **Retrospective Development Application (DA)**.

1. Intention to Lodge a Retrospective Development Application

I confirm my intention to lodge a **Retrospective Development Application** for the garden workshop structure. This approach ensures:

- Full assessment under Section 4.15 of the EP&A Act;
- Consideration of all environmental, structural, and bushfire-related matters; and
- A lawful and orderly pathway to compliance without the need for demolition.

This is consistent with standard practice for unauthorised works that are capable of being made compliant.

2. Factual Clarifications Regarding Setbacks and Structure Location

The Notice states that the shed is located within 900 mm of the adjoining boundaries. However, the attached **Workshop Plan (27 January 2025)** shows:

- **900 mm setback** to the north boundary;
- **950 mm setback** to the west boundary;
- **1.2 m setback** to other sections of the structure.

These measurements are clearly marked on the plan and demonstrate that the structure **meets the minimum 900 mm setback requirement** under Clause 2.18 of the *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

A **registered surveyor's setback certificate** will be provided with the Retrospective DA to confirm these distances.

3. Stormwater Management and Drainage Compliance

The Notice identifies missing stormwater connections. The workshop plan includes:

- Existing downpipe locations;
- Proposed stormwater pipe (6 m);
- Roof drainage layout.

A **hydraulic drainage plan** will be submitted with the DA, including:

- Guttering and downpipes;
- Connection to the lawful point of discharge;
- Compliance with Council's stormwater design standards.

These matters are readily rectifiable and do not warrant demolition.

4. Structural Adequacy and BCA Compliance

The Notice states that no documentation has been provided demonstrating structural adequacy. A **structural engineer's report** will be supplied with the DA, addressing:

- Footing and slab adequacy;
- Wall and roof framing;
- Fixing schedules;
- Compliance with the *Building Code of Australia*.

The structure is capable of meeting all relevant performance and deemed-to-satisfy provisions.

5. Tree Protection and Environmental Considerations

The Notice raises concerns regarding potential impacts on a nearby native tree. An **arborist report** will be provided to:

- Assess root protection zones;
- Confirm no adverse impacts from the slab or structure;
- Recommend any mitigation measures.

This ensures compliance with Clause 1.16(3)(b) of the SEPP.

6. Bushfire Compliance (Planning for Bush Fire Protection 2019)

The property is located on **Bush Fire Prone Land**. The workshop is a **non-habitable outbuilding**, and as such, can be assessed and approved under:

- *Planning for Bush Fire Protection 2019* (PBP 2019);
- Relevant BAL construction requirements.

A **BAL assessment** and **materials schedule** will be submitted with the DA, demonstrating that the structure can be made fully compliant.

7. Proportionality and Reasonableness of Enforcement Action

The EP&A Act requires that enforcement action be **reasonable, proportionate, and consistent** with Council's Compliance and Enforcement Policy.

Given that:

- All identified issues are **rectifiable**;
- The structure is **non-habitable** and low-risk;
- No evidence has been presented of structural failure, fire risk, or environmental harm;
- A Retrospective DA is being prepared;

...a demolition order would be **disproportionate** and unnecessary.

I respectfully request that Council:

- Suspend the proposed demolition order; and
- Allow the Retrospective DA to proceed through the normal assessment process.

8. Request for Re-Inspection

Given the discrepancies regarding boundary setbacks, I will arrange a **site re-inspection** to verify:

- Actual distances to boundaries;
- Stormwater arrangements;
- The non-habitable nature of the structure.

This will ensure that Council's assessment is based on accurate and current information.

9. Conclusion

I am committed to achieving full compliance and working cooperatively with Council. The Retrospective DA pathway provides a lawful, orderly, and reasonable means of resolving the matter without resorting to demolition.

I request that Council consider these representations and allow the DA process to proceed.

Please contact me if further information is required.

Yours faithfully,

David Charles Lewis

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